

FBI Phoenix Field Office Agent Handbook (1997)

Introduction: In 1997, FBI field agents operated under a detailed framework of laws, Supreme Court rulings, and Department of Justice policies. This narrative-style handbook provides an overview of the key legal principles and FBI procedures that governed day-to-day investigative work in the late 90s – explained in plain language for non-lawyers. We cover the FBI's authority, constitutional constraints on searches, seizures, arrests, and interrogations (with an emphasis on the Fourth, Fifth, and Sixth Amendments), as well as internal FBI policies circa 1997 (use-of-force rules, informant handling, paperwork, etc.). You'll learn how federal law interplays with state law, and how agents coordinate with federal prosecutors (AUSAs), local police, and other agencies. Throughout, realistic field scenarios illustrate how experienced agents (5–7 years on a violent crime squad) applied these legal concepts in practice. The goal is to equip you to portray an FBI agent in 1997 accurately – enforcing the law while upholding civil rights, navigating both the letter of federal statutes and the spirit of the Constitution.

FBI Authority and Federal Jurisdiction (1997)

Sources of Authority: FBI agents are federal law enforcement officers, and their authority comes from U.S. federal law. Agents can't investigate just any crime – only offenses that violate federal statutes or involve federal jurisdiction (e.g. interstate crimes, crimes on federal property, threats to national security, etc.). Congress has granted FBI agents broad powers to enforce these laws. For example, **18 U.S.C. § 3052** explicitly authorizes FBI agents to carry firearms, serve warrants, and **"make arrests without warrant for any offense against the United States committed in their presence, or for any felony... if they have reasonable grounds to believe"** the person committed it ¹. In practice, "reasonable grounds" means **probable cause** – a reasonable belief based on facts that a crime has been or is being committed. This statute empowers an agent to act decisively: an FBI agent with probable cause can arrest a suspect on the spot for a serious federal crime (like bank robbery or espionage) without waiting for a warrant ¹. Agents may also execute arrest warrants and search warrants issued by federal courts. They are armed (standard issue in 1997 was a Glock pistol) and trained to use force **only** according to strict FBI policy (discussed later in the Use of Force section).

Federal vs. State Crimes: The FBI's jurisdiction is limited to federal offenses – crimes defined by U.S. law. Many violent crimes (murder, assault, rape, robbery) are traditionally state offenses handled by local police and state courts. However, certain **violent crimes become federal matters** if they involve specific federal interests or cross state lines. Some examples relevant to a Phoenix-based agent in 1997:

- **Bank Robbery (18 U.S.C. § 2113):** Bank robbery is a federal crime because banks are federally insured. Taking money by force or intimidation from a bank or credit union is a federal offense. The base penalty is up to 20 years in prison; if a dangerous weapon is used or someone is assaulted (armed bank robbery), up to 25 years; if a death results, it can even be life imprisonment or capital punishment ² ³. The FBI has primary jurisdiction over bank robberies (a major category of cases in the '90s). An agent might say, "He's looking at a **2113(d)** aggravated bank robbery charge for using that firearm," citing the subsection for armed bank robbery.

- **Kidnapping (18 U.S.C. § 1201):** Under the Federal Kidnapping Act (the “Lindbergh Law”), kidnapping is federal if the victim is taken across state lines **or** if the victim is not released within 24 hours (which creates a presumption the victim was moved interstate) ⁴ . In other words, if a kidnapper crosses state boundaries or simply holds the victim for more than 24 hours, the FBI can step in. Punishment can be up to life in prison, and if the victim dies, the kidnapper can face life or the federal death penalty ⁵ . (There are also specialized federal statutes for **hostage taking** in international terrorism cases, 18 U.S.C. § 1203, but those are less common for a general violent crime squad agent.)
- **Carjacking (18 U.S.C. § 2119):** Carjacking – taking a motor vehicle by force or intimidation – became a federal crime in the 1990s if the vehicle has moved in interstate commerce (virtually all cars qualify). The law has **tiered penalties**: up to 15 years in prison normally, up to 25 years if serious bodily injury results, and if a death occurs, up to life in prison or even death in certain cases ⁶ . (In 1997 the death penalty was available for carjacking murders due to a 1994 amendment.) FBI agents in Phoenix might work carjacking cases especially if they are linked to interstate auto theft rings or if they coincide with other federal offenses (many carjackings were also prosecuted by ATF when firearms were involved).
- **Interstate Domestic Violence & Stalking (VAWA 1994, 18 U.S.C. §§ 2261, 2261A, 2262):** The Violence Against Women Act of 1994 federalized certain domestic violence crimes. For example, it became a federal offense to cross state lines to commit domestic violence against a spouse/intimate partner, or to stalk or harass someone across state lines, or to travel interstate to violate a restraining order ⁷ . These were new charges in the late ‘90s, and agents had to explain them to local partners. Penalties depend on the injury to the victim – ranging from up to 5 years to life in prison if the victim suffers life-threatening injury or is killed ⁸ . For instance, if a Phoenix resident drove to California to brutally beat his ex-wife, he could face federal charges under **18 U.S.C. § 2261(a)(1)** for interstate domestic violence. An agent might note, “Under VAWA, crossing state lines to attack your partner makes it a federal case – 18-2261. If she’s permanently injured, you’re looking at a potential life sentence.”
- **Hobbs Act Robbery (18 U.S.C. § 1951):** The Hobbs Act covers robbery or extortion that **affects interstate commerce** in any way or degree. This is a broad hook – even robbing a local business can count if the business buys or sells products across state lines. (Courts only require a *de minimis* effect on commerce. Even a small or indirect impact – e.g. robbing a convenience store that stocks out-of-state goods – is enough ⁹ ¹⁰ .) The Hobbs Act is often used by FBI agents to charge armed robbers who hit stores, restaurants, or delivery drivers. Punishment can be up to 20 years per count ¹¹ . If a robbery crew commits a string of armed store robberies in Phoenix, the FBI might adopt the case using the Hobbs Act and add firearm charges (see 18 U.S.C. § 924(c) below) to hit them with federal penalties.
- **Firearms Offenses – Using a Gun in a Violent Crime (18 U.S.C. § 924(c)):** This statute isn’t a stand-alone crime but an enhancement that the AUSA can add to any qualifying violent crime or drug trafficking crime. In 1997, §924(c) mandated a **5-year minimum** prison term for using or carrying a firearm during a crime of violence or drug crime, **7 years** if the firearm was brandished, **10 years** if discharged, and even more (30 years to life) for machine guns or explosives ¹² . Crucially, these sentences run **consecutive** to the underlying crime’s sentence. For example, if convicted of bank robbery (max 20 years) and also of 924(c) for firing the gun during the robbery, the defendant would face at least 10 extra years on top of the robbery sentence ¹² . Agents often use 924(c) as leverage

in plea negotiations (“plead to the robbery and we’ll drop the gun count” or vice versa). Around the office, agents might say “We’ll tack on a **924(c)**” or refer to it as “the gun charge” to increase pressure on armed criminals.

- **Assaulting or Killing Federal Officers (18 U.S.C. §§ 111 & 1114):** FBI agents are keenly aware of the federal laws protecting them and other federal officials. It’s a federal crime to forcibly assault, resist, or impede a federal officer (including agents) in the performance of their duties ¹³. If a weapon is used or bodily injury inflicted, the penalty can be up to 20 years. Likewise, killing a federal officer or employee (or attempting to) is a federal offense that can be punished by life imprisonment or death ¹³. Threats against federal agents or officials (18 U.S.C. § 115) are also federal crimes. These statutes don’t usually come into play unless someone attacks the agents, but they provide an extra deterrent and are sometimes invoked in cases like fugitives who shoot at agents during arrest.
- **Major Crimes on Indian Reservations (18 U.S.C. § 1153 – Major Crimes Act):** Arizona has numerous Native American reservations, and under the Major Crimes Act the FBI has jurisdiction to investigate certain serious crimes in “Indian Country.” Since 1885, federal law has provided that major felonies (such as murder, manslaughter, rape, kidnapping, assault with a dangerous weapon, arson, burglary, etc.) committed by a Native American *in Indian country* are under federal jurisdiction ¹⁴ ¹⁵. If either the victim or perpetrator is an enrolled Native American and the crime occurred on reservation land, the FBI (in conjunction with tribal and BIA police) will investigate and the case will be prosecuted in federal court. For example, a homicide on the Navajo Nation would typically be a federal case, with the FBI handling the investigation. (If the suspect is non-Indian and victim is Indian, or vice versa, federal jurisdiction also generally applies under related statutes ¹⁶.) Agents in Phoenix Division work closely with tribal police – but they know that **tribal sovereignty and federal law intersect** in complex ways. They must be respectful of tribal protocols while ensuring major offenses are handled through the federal system. Notably, punishment for these crimes is as per federal law (e.g. murder can carry life or death, as defined in 18 U.S.C. § 1111) ¹⁷.
- **Federal Murder Statutes:** Unlike state law, there isn’t one all-encompassing “federal murder” statute; it depends on jurisdiction or victim. For example, **18 U.S.C. § 1111** defines murder within the special maritime and territorial jurisdiction of the U.S. (which includes federal lands, Indian country by assimilation, U.S. facilities, etc.) ¹⁷. First-degree murder (premeditated or felony murder) under §1111 is potentially punishable by life in prison or the federal death penalty, while second-degree murder carries up to life. There are also statutes for murdering specific victims: §1114 covers killing a federal officer; §1116 covers killing foreign officials, §1119 covers U.S. nationals murdered abroad, etc. The key point is that if a murder falls under federal jurisdiction (e.g. occurs on a national park, or the victim is a U.S. government official, or is on a reservation and Major Crimes Act applies), the FBI will lead the investigation and the case goes federal.
- **Unlawful Flight to Avoid Prosecution – “UFAP” (18 U.S.C. § 1073):** This is a tool the FBI uses to assist local authorities in catching fugitives. If someone is charged with a state felony (say a Phoenix murder) and then flees across state lines, the FBI can obtain a federal UFAP warrant for the fugitive. The **primary purpose** of the Fugitive Felon Act is to enable the federal government to help locate and apprehend fugitives from state justice ¹⁸. Essentially, it makes it a federal crime to flee interstate to avoid state prosecution. Once the person is caught, typically the federal UFAP charge is dropped and the suspect is handed back to the state for the underlying crime ¹⁹. In Phoenix, agents often use UFAP warrants – for example, “*Our homicide suspect fled to Nevada, so we got a UFAP*

warrant and coordinated with Las Vegas FBI to grab him.” It’s understood that a UFAP warrant is a means to an end: it gives agents legal authority to cross jurisdictions and work with other FBI offices and local police to capture the fugitive ²⁰. (The UFAP warrant does **not** replace the normal extradition process; it’s used in tandem to expedite the fugitive’s capture.)

- **Other Federal Offenses:** In 1997, federal **hate crime** laws were relatively narrow – 18 U.S.C. § 245 made it a federal crime to use force due to someone’s race/religion *only* if the victim is engaged in specific federally protected activities (like voting, going to school, serving on a jury, etc.), and 18 U.S.C. § 247 covered church arsons ²¹. (There was no general hate crime law covering all bias-motivated violence until much later.) The FBI’s Civil Rights Squad would handle those cases. Additionally, agents on a violent crime squad might occasionally encounter **18 U.S.C. § 844** (bombings that damage property in interstate commerce – e.g. a bomb at a building or business, which is federal arson) or **18 U.S.C. § 242** (violations of civil rights under color of law, used if a law enforcement officer uses excessive force or torture – investigated by FBI). Organized violent gangs could be charged under **RICO** (Racketeer Influenced and Corrupt Organizations Act) if they engaged in a pattern of murder, kidnapping, or robbery as part of a criminal enterprise. And if a case edged into terrorism (e.g. a bombing with political motive), statutes like 18 U.S.C. § 2332b (terrorism acts) or weapons of mass destruction laws could apply. A Phoenix agent in 1997 primarily focused on bank robberies, kidnappings, interstate crimes, etc., but needed to be aware of this broader legal landscape.

Phoenix Division AOR (Area of Responsibility): The Phoenix Field Office covers the entire state of Arizona, which presents a mix of urban and rural environments and many unique jurisdictional issues. Arizona’s border with Mexico means international aspects (cross-border crimes, fugitives escaping to Mexico, kidnapping cases with victims taken south) sometimes arise. In such cases, Phoenix agents coordinate closely with Mexican authorities and the U.S. State Department. A notable historical example: *In 1974, an American diplomat was kidnapped in Mexico; Phoenix FBI agents played a key role in investigating, working “in expert investigation and sensitive liaison with Mexican authorities” to solve the case* ²². Extradition from Mexico or other countries is handled through diplomatic channels, but FBI agents will often be on the ground liaising with foreign police when chasing violent criminals internationally.

Within Arizona, Phoenix Division agents routinely team up with local and state law enforcement. The FBI frequently forms **joint task forces** with Phoenix PD and other agencies for matters that overlap jurisdictions – for instance, a violent gang case might involve state drug offenses and federal racketeering, so a task force ensures everyone works together. Generally, the FBI needs a “federal hook” to take lead (like interstate elements or a specific federal statute), but even for primarily state crimes, FBI resources (crime lab, fingerprint databases, behavioral profilers, etc.) might be offered as assistance. Conversely, local officers often join FBI agents on federal operations, providing local knowledge or manpower. An experienced Phoenix agent knows the importance of **coordination with the U.S. Attorney’s Office (USAO)** as well – more on that next.

Every law enforcement officer in the U.S., federal or local, is sworn to uphold the Constitution. FBI agents and local police thus share a common baseline of procedure (probable cause, warrants, Miranda rights, etc.). Below, we delve into those procedural rules that shape an agent’s daily work.

Criminal Investigative Procedure and Field Work

An FBI agent with 5–7 years on a violent crime squad in 1997 is well-versed in criminal procedure – the rules for lawfully conducting investigations, searches, seizures, arrests, and interrogations. These rules directly shape day-to-day decisions, ensuring evidence will hold up in court and suspects' rights are respected. A savvy agent must not only **“talk the talk”** (using proper legal terminology) but also scrupulously follow the law so as not to jeopardize the case. This section provides an in-depth look at key procedural concepts and how they impact an agent's field work, with examples to illustrate each point.

Predication and Case Initiation

Before formally opening an investigation, FBI policy in 1997 required **“predication”** – a factual basis indicating a potential federal crime. The Department of Justice's Attorney General Guidelines (as they existed in the '90s) mandated that agents have a credible allegation or information that a crime has occurred or is being planned before employing investigative techniques. In practical terms, a case might begin when:

- **A victim or witness report is received.** For example, a bank reports it was robbed, or a citizen tips off the FBI about a kidnapping that crossed state lines. This gives clear predication of a possible federal crime.
- **A referral from local law enforcement.** Local police might call in the FBI if a crime meets federal criteria – e.g. a murder suspect has fled across state lines (triggering the possibility of a Unlawful Flight/UFAP warrant), or a string of armed robberies appears to affect interstate commerce.
- **Proactive intelligence development.** For instance, a **confidential informant** tells their FBI handler about a planned violent crime (say, an informant in a gang warns of an upcoming armed robbery or hit), or FBI analysts notice a pattern linking crimes in multiple states (warranting a federal investigation).

Once predication is established, the agent opens a case file. Often, one of the first calls is to an Assistant U.S. Attorney (AUSA). **Early coordination with the federal prosecutor** is encouraged, especially for serious violent crimes. The AUSA can advise on what charges might fit, what evidence is needed, and can help draft criminal complaints or search warrant affidavits. In fact, FBI policy strongly encourages getting **USAO authorization and a warrant before making an arrest whenever possible**, to ensure the case is solid ²³
²⁴ . A seasoned agent knows that prematurely grabbing a suspect without enough evidence can backfire; instead, they methodically build **probable cause** under the guidance of prosecutors before moving in.

(Scenario: A bank robbery occurs in Phoenix. The FBI gets involved because the bank is federally insured. The case agent reaches out to the AUSA the same day: together they review evidence (surveillance photos, getaway car info, etc.) to see if there's enough for a warrant. The AUSA might say, “Let's get a federal complaint and arrest warrant for the suspect – we have video and a positive ID from a witness, which is probable cause.” The agent will follow that advice rather than rushing out to arrest on a hunch, ensuring that when they do arrest, the paperwork and legal basis are sound.)

Probable Cause and Warrants

Probable Cause (PC) is the fundamental threshold for most law enforcement actions. The Fourth Amendment requires probable cause for arrests and searches (unless a specific exception applies). Probable

cause exists when **the known facts and circumstances would lead a reasonably prudent person to believe that a crime has been committed and that a particular person committed it**, or that evidence of a crime is present in a particular place ²⁴ . In plain terms, it's a fair probability or reasonable grounds to suspect wrongdoing, based on the totality of the circumstances. Agents often frame it as, "We have enough facts that a neutral judge would agree it's likely that evidence will be found or that this person did it."

For example, if agents have eyewitness testimony and camera footage of John Doe robbing a bank, they have probable cause to arrest Doe and to search his residence for the stolen money or weapon (assuming they get a warrant). It's more than a hunch – it's a reasonable belief grounded in specific facts.

Search Warrants: In general, FBI agents obtain a search warrant from a judge before searching a person's property (house, office, electronic devices, etc.). A search warrant is a court order that must be supported by an affidavit of probable cause describing the place to be searched and the items to be seized. To get a warrant, the agent writes a **sworn affidavit** detailing all the evidence and reasons that lead them to believe the sought items (contraband, fruits of crime, weapons, etc.) are in that location. A "**neutral and detached**" **magistrate** (judge) must review and agree that probable cause exists to issue the warrant ²⁵ ²⁶ . The warrant will specify the address or location to be searched and the particular items or evidence being looked for. It also has a limited timeframe (usually execution within 10 days).

FBI policy in 1997 required agents to **consult with an AUSA before submitting a warrant application**, to ensure the affidavit meets legal standards ²⁶ . Once a search warrant is issued, agents planning to execute it will typically do so in the daytime (unless a judge approves night search) and, importantly, **must "knock and announce"** their identity and purpose before entering (e.g. "FBI – search warrant!"). The only times agents may dispense with knocking are if the warrant itself permits a **no-knock** entry (which a judge might allow in rare cases where announcing would clearly pose a danger or lead to destruction of evidence), or if exigent circumstances arise on the spot (for example, if agents approach and hear evidence being destroyed, or a suspect threatens violence – more on exigent circumstances below) ²⁷ ²⁸ . In 1997, the Supreme Court had just reaffirmed that there is no blanket "drug case" exception to the knock-and-announce rule – officers must have case-specific justification for no-knock entry (see *Richards v. Wisconsin*, 1997) ²⁹ . FBI training emphasizes planning for a safe entry but also respecting the knock/announce requirement whenever feasible.

Arrest Warrants: To arrest someone in their own home (or any private location where they have an expectation of privacy), agents generally seek an arrest warrant from a judge as well, by showing probable cause that the person committed a specific federal offense. An arrest warrant names the individual and the offense and gives agents authority to take the person into custody. FBI policy and practice: "*Wherever possible, prosecution should be authorized by the USAO and a warrant obtained prior to an arrest,*" as the FBI's own Legal Handbook for Special Agents advised ³⁰ . In other words, an experienced agent usually does **not** do a surprise, warrantless arrest in a suspect's home unless there's no other choice – instead they work with prosecutors to file charges (via a complaint or indictment), get the arrest warrant, and then make a planned arrest. This ensures that when the arrest happens, the court is already on board (charges filed) and everything proceeds smoothly (the suspect will be brought before a magistrate promptly, etc.).

There are also practical and legal reasons for preferring arrest warrants. For instance, if a suspect is lying low at a third party's house (not their own residence), the Supreme Court's *Steagald v. United States* decision says you **cannot** enter someone else's home to arrest a suspect on an arrest warrant alone – you'd need a search warrant for the third party's home (absent consent or exigency) ³¹ . Agents are taught this rule to

avoid busting into, say, a friend's apartment to grab a fugitive without getting a proper judicial OK. Having arrest warrants and any necessary search warrants in hand avoids such pitfalls.

"Reasonable Suspicion" vs. Probable Cause: Agents distinguish between *probable cause* and the lower standard of *reasonable suspicion*. **Reasonable suspicion** (from *Terry v. Ohio*, 1968) is enough for a brief investigative stop or detention – for example, stopping someone on the street if the agent has specific, articulable facts suggesting the person is involved in criminal activity. It's a step above a mere hunch, but less than PC. Reasonable suspicion allows limited intrusions: an agent can conduct a *Terry stop* (stop and briefly question someone) and, if the agent also reasonably suspects the person is armed, do a *Terry frisk* (a pat-down for weapons). But to *arrest* someone or to *search beyond a frisk*, the agent must elevate to full probable cause.

A quick field summary agents use: **reasonable suspicion lets you stop and inquire; probable cause lets you arrest and search**. For example, imagine agents surveilling a suspected kidnapper: they have a description of a van and partial plate. They spot a similar van driving erratically in an area near the last known location. They may have reasonable suspicion to pull it over (vehicle stop). During the stop, if they see a bound and gagged person in the back seat (!) that observation instantly gives probable cause to arrest the driver and search the vehicle. At each stage, agents must be prepared to articulate the facts that justified escalating from one level of intrusion to the next.

Search and Seizure: Rules and Exceptions

The Fourth Amendment governs an FBI agent's search and seizure activities. The **default rule** is that any search of a person's property or seizure of evidence requires a valid warrant issued by a judge on probable cause ³² ³³. However, there are several well-recognized **exceptions** that agents rely on in the field when obtaining a warrant beforehand is impractical or unnecessary. An agent in 1997 was expected to know these exceptions cold (and be able to later testify as to why an exception applied). Below are the key exceptions to the warrant requirement, with definitions and examples:

- **Consent:** If a person with proper authority voluntarily consents to a search, no warrant (and no probable cause) is needed ³⁴. Consent is a cornerstone of law enforcement work – agents will often *ask* for permission to search, because a yes makes the search lawful immediately. For example, if agents knock on a suspect's door and politely ask, "May we come in and look around?", and the suspect says "Sure," that consent makes the subsequent search legal. Consent must be given freely and not be coerced. In practice, agents secure this by using a written **FD-26 Consent to Search form** where the person signs that they agree to the search. A third party who has **common authority** over property can also consent (e.g. one spouse can let agents search the couple's home, or a roommate can consent to a search of common areas). If someone consents and then *withdraws* consent, agents must stop unless another exception kicks in. Also, **Miranda warnings are not required just to ask for consent** – asking to search is not an interrogation about a crime, so agents often make the consent request as a casual question. (E.g. during a car stop: "Mind if I take a look in the trunk?") FBI agents are trained to *ask* for consent when possible, since it's the most straightforward way to proceed if granted ³⁵ ³⁶.
- **Exigent Circumstances:** In an emergency, agents can act without a warrant if waiting for a judge **would likely lead to harm, the destruction of evidence, or the escape of a suspect** ³⁷ ³⁸. These are urgent situations where law and common sense recognize that immediate action is

justified. Examples: if agents hear screaming and sounds of a struggle inside a house, they can lawfully kick the door to enter and protect life – that’s an exigent circumstance (someone in danger) and no warrant is needed to enter. Similarly, “hot pursuit” of a fleeing dangerous suspect allows agents to follow into homes without a warrant. Or if agents have probable cause that evidence will be destroyed imminently (say, they see a suspect dumping what looks like drugs down a toilet), they can enter to secure the evidence. FBI policy in the ‘90s listed acceptable exigencies for entering a home without a warrant to arrest someone: a reasonable belief that the suspect would flee, that evidence would be destroyed, or that delay would increase danger to agents or others ³⁹. Agents must later be able to explain the specific emergency. (*Scenario: Agents surround a murder suspect’s apartment; as they approach, they smell smoke and see through a window the suspect burning bloody clothes in a trash can. Fearing critical evidence will be lost, they rush in without a warrant – justified by exigency to prevent destruction of evidence.*)

- **Search Incident to Arrest:** When agents make a **lawful arrest**, they are entitled to immediately search the arrestee’s person **and** the area within the arrestee’s immediate control, without a separate warrant ⁴⁰ ⁴¹. This is for officer safety and to prevent the arrestee from grabbing a weapon or destroying evidence. For example, if the FBI’s SWAT team arrests a kidnapping suspect in his living room, agents can search his pockets, and also look around the immediate area – such as under the couch cushions where he was sitting, or a desk drawer within reach – for weapons or evidence. They can also search any **containers** on him or in grab-range. In 1997, under *New York v. Belton* (1981), if agents arrested someone who had been in a car, they could search the **passenger compartment** of the vehicle as a search incident to arrest (this was standard at the time) ⁴². [Note: The Supreme Court in 2009 (*Arizona v. Gant*) later narrowed vehicle searches incident to arrest, but that came after 1997 and thus in 1997 agents still operated under the more lenient *Belton* rule.] The important limit: a search incident to arrest is confined to the *immediate area* of the suspect at the time of arrest. You can’t, for example, arrest someone in their living room and then go rummage through their entire house claiming it’s incident to arrest – going beyond the immediate area would require either consent, a search warrant, or another exception (like a **protective sweep** of the house if you have reasonable suspicion there might be accomplices hiding, which allows a quick check of other rooms for officer safety, but not a full evidence search).
- **Plain View:** If agents are lawfully present in a place (say, executing a search warrant, or in a home with consent, or peering through a window from a public vantage) and they **observe evidence of a crime in plain sight**, they can seize it without a further warrant ⁴³ ⁴⁴. Three key requirements: (1) the agent must be in a location they have a right to be; (2) the item’s incriminating nature is immediately apparent (it looks obviously like contraband or evidence); (3) the agent finds it without conducting an additional illegal search. Classic example: Agents have a search warrant for a suspect’s garage to look for stolen guns. While searching the garage (lawfully), an agent sees bundles of what looks like illegal drugs sitting openly on a shelf. The agent can seize the drugs under plain view – even though the warrant was for guns – because the agent was allowed to be in the garage and it was immediately obvious the bundles were contraband ⁴³ ⁴⁴. Plain view often comes into play during warrant executions or during consent searches, and also at crime scenes. It doesn’t allow an invasive search of closed containers unless those containers were already being searched legally; it just means you can seize what you *happen* to see in plain view while you’re legitimately in a place.

- **Automobile Exception:** Cars (and other vehicles) have special rules because they are mobile and deemed to have a lower expectation of privacy than a home. If agents have **probable cause** to believe a vehicle contains evidence or contraband, they can search the vehicle immediately **without a warrant** – this is known as the Carroll doctrine, after *Carroll v. U.S.* (1925) ⁴⁵. In 1997, this extended to any part of the vehicle that might conceal the object of the search (trunk, glove box, containers within the car, etc.). For instance, if agents have solid intel that a suspect's car trunk contains a kidnap victim's belongings or a stash of weapons, they can pull the car over and search the trunk on the spot given probable cause – they need not obtain a warrant first ⁴⁶ ⁴⁷. The rationale: vehicles can quickly drive away (exigent) and are heavily regulated, so the law allows prompt action. If agents only have **reasonable suspicion** regarding a car, they can perform a traffic stop (a Terry stop for a vehicle) and perhaps use a trained drug-sniffing dog or other means to develop full probable cause. During any lawful vehicle stop, agents can also order occupants out of the car for safety (per *Pennsylvania v. Mimms*) and, if they have reasonable suspicion someone is dangerous and armed, they can frisk the person or conduct a limited search of the vehicle's passenger area where a weapon might be hidden (per *Michigan v. Long*). But a full-blown search of the car's compartments for evidence requires probable cause – once they have that, the automobile exception kicks in.
- **Inventory Searches:** Whenever agents lawfully **impound a vehicle** or take personal property into custody (for example, when arresting someone and bringing them to jail along with their belongings), standard FBI procedure is to do an inventory of the property. The **inventory search** is an administrative, routine search to document items for safekeeping (to protect the owner's property and protect the police from false claims of theft). As long as the agents are following standard policy (not using "inventory" as a pretext to rummage for evidence), any contraband or evidence they find during the inventory is admissible. For example, if a suspect is arrested and his car is impounded, officers will inventory its contents at the impound lot; if during that they discover bloody clothes or a weapon in the trunk, it's admissible because the search was for caretaking purposes, not an improper evidence hunt ⁴⁸ ⁴⁹. Similarly, when someone is booked into jail, agents will inventory the items on them (wallet, bag, etc.) – if a key piece of evidence (say a note or a key) is found in that process, it can be used in court. Inventory searches must be in line with agency policy – the FBI, like most agencies, has written procedures on how to conduct inventories.
- **Border Searches:** Although not typically part of a violent crime agent's daily routine, it's worth noting that at international borders and ports of entry, **routine searches** of people and effects require no warrant or probable cause. The sovereign right to control borders means agents (or more often Customs/Border Patrol officers) can search luggage, vehicles, etc., at the border by default. If a violent crime investigation involves a suspect crossing the U.S.-Mexico border, FBI agents might coordinate with border agents who have wider latitude to stop and search at checkpoints. (For example, if a kidnapping suspect is believed to have taken the victim into Mexico, the FBI will alert border stations. When the suspect comes back through an official crossing, he and his vehicle can be thoroughly searched by Customs without a warrant – any evidence found can be handed over to the FBI.) In 1997, cooperation between Phoenix FBI and border authorities was common when fugitives or evidence might cross into Mexico or vice versa.

These exceptions mean that while **warrants are the gold standard**, agents often operate without one when circumstances demand it – but always with an eye toward reasonableness and later justification. The guiding principle is the Fourth Amendment's ban on "unreasonable searches and seizures." If an agent's

search is reasonable under an exception or necessary for safety, it will generally be upheld in court. However, agents are acutely aware that any evidence obtained through an **unconstitutional search** (i.e. a Fourth Amendment violation) risks suppression under the **exclusionary rule**. The exclusionary rule means the prosecution cannot use evidence in court if it was obtained by violating the Fourth Amendment ⁵⁰. In other words, if you don't follow the rules, the evidence is out and the bad guy might walk free. As agents often remind each other, *"If we don't get it right, we could lose the case."* Therefore, they follow procedure diligently or consult the FBI's Office of the General Counsel when in doubt.

There are a couple of technical doctrines that can save evidence even if a mistake is made. The **inevitable discovery** doctrine allows evidence that *would have inevitably been found lawfully* to still come in – e.g. if agents were already getting a warrant and would have found the evidence anyway, an earlier misstep might be forgiven ⁵¹. And the **good faith** exception (from *U.S. v. Leon*, 1984) permits evidence if agents reasonably relied on a search warrant that they thought was valid but later is found defective (or on a law that was later overturned) ⁵². For instance, if an agent executes a warrant that a judge signed, and later a court rules the warrant lacked sufficient detail, the evidence can still be used because the agent acted in good faith reliance on the judge's approval. These exceptions are safety nets in court, but the agent's goal is always to *do it right the first time* – get a proper warrant when required, document consent properly, and so on – so that evidence stands on rock-solid footing.

Arrests and Use of Force

Making the Arrest: When the time comes to arrest a suspect, FBI agents either have an arrest warrant in hand or, if an urgent situation arises, rely on their statutory power to make a warrantless arrest given probable cause (as discussed under 18 U.S.C. § 3052). Ideally, the agents have obtained an arrest warrant in advance – a judge's affirmation that probable cause exists. Often this is done by having the AUSA file a **criminal complaint** (with the agent's affidavit) or by securing an indictment from a grand jury, and then a magistrate issues the warrant. With a warrant, agents can plan a **"daytime arrest"** at a time and place likely to minimize risks (e.g. catching the suspect when he's leaving for work, rather than in a crowded public area or barricaded in a house). Planned arrest operations involve briefing and often using FBI SWAT or arrest teams for dangerous suspects.

However, violent crime situations can be fluid. Agents are trained that if they unexpectedly encounter a suspect or see a crime in progress, and waiting isn't an option, they *can and should* make a **warrantless arrest on probable cause**. The law allows it – as noted, any federal felony can be the basis of a warrantless arrest if there's probable cause ⁵³ ¹. For example, if agents have been surveilling a bank robbery suspect and suddenly spot him driving down the road, and they believe they have enough evidence tying him to the robbery, they will not hesitate to perform a vehicle stop and arrest him then and there, even if it's a day before they originally planned to arrest with a warrant. They'll then file the paperwork (complaint) immediately after. The key is that at the moment of arrest, the agents must have in their knowledge the same quantum of evidence that a warrant would require. Agents are prepared to later articulate in their 302 report and testimony all the facts amounting to probable cause that existed at the time of the warrantless arrest.

After any arrest (whether with a warrant or without), the suspect must be brought "without unnecessary delay" before a federal magistrate judge – typically within 24 to 48 hours at most (and usually the next business day). At this **initial appearance**, the judge informs the defendant of the charges and their rights, and decides on bail or detention. The FBI agent provides the charging document (complaint or the

previously obtained indictment) and sometimes a short summary of the case (called a *“statement of facts”* or provides testimony if required for a preliminary hearing). In a federal violent crime case, it’s common for the government to seek **pretrial detention** (no bail), arguing the defendant is dangerous or a flight risk. The agent will work with the AUSA to present facts to the judge (e.g. the serious nature of the crime, use of firearms, threats made, risk of fleeing) to support holding the suspect in custody pending trial.

“Knock and Announce” Rule: If agents are executing an arrest warrant at a suspect’s home, the standard protocol (and constitutional requirement) is to knock on the door and announce their identity and purpose before forcing entry. For example: *knock knock* – “FBI! We have a warrant for your arrest!” Only if they are refused entry or no one responds after a reasonable time (or if exigent circumstances exist) can they then force entry. This knock-and-announce rule is part of the Fourth Amendment’s reasonableness requirement ⁵⁴. There are situations where agents can justify an unannounced (no-knock) entry: if announcing would be **dangerous, futile, or lead to destruction of evidence**. For instance, if the suspect has threatened to shoot any “feds” who come to the door, that presents a strong argument for a no-knock dynamic entry (to preserve agent safety). Or if agents have a credible tip that the suspect will immediately destroy crucial evidence upon hearing “police at the door,” that could justify not announcing. In practice, agents try to **get advance judicial authorization** for no-knock in the warrant if they anticipate it (by including those facts in the warrant affidavit), because as of 1997 the Supreme Court (in *Richards*) said you cannot have a blanket category (like “all drug cases”) for no-knock – you need case-specific reasons ²⁹. If an unplanned exigency arises (e.g. as the team stacks at the door they hear the suspect rack a shotgun inside), the agents can decide on the fly to forego the announcement for safety – but they’ll have to later explain to a court why it was reasonable under the circumstances ⁵⁵ ⁵⁶. The FBI emphasizes safety in all arrest operations: before an arrest, the case agent usually writes an **Operations Plan** assessing risks (suspect’s background, weapons, others in house, etc.) and gets it approved by supervisors. The plan will note whether it’s knock-and-announce or no-knock, use of SWAT, etc. All arrests of violent suspects are ideally conducted with overwhelming manpower and planning to minimize the chance of resistance or harm.

Use of Force Policy: FBI agents in 1997 operated under the **DOJ Deadly Force Policy (last updated October 1995)**. The core of that policy was: *“FBI special agents may use deadly force only when necessary – when the agent has a reasonable belief that the subject of such force poses an imminent danger of death or serious physical injury to the agent or another person.”* ⁵⁷. In simpler terms, agents can only shoot to neutralize an immediate threat of death or severe injury. Deadly force is **a last resort**. Whenever feasible, agents should issue a verbal warning (**“Freeze – FBI!” / “Drop the weapon!”**) before firing ⁵⁸ ⁵⁹, but only if that warning wouldn’t increase the danger (you don’t warn if it gives the suspect a chance to shoot you first). This DOJ policy mirrors constitutional standards – notably *Tennessee v. Garner* (1985), which forbids using deadly force against a fleeing felon *unless* that felon poses a significant threat of death or serious physical harm if not immediately stopped. Practically, FBI agents are trained that they shoot **only** to protect life – either their own or someone else’s. They do **not** shoot to protect property or to prevent escape of someone who isn’t dangerous. For example, an agent will not shoot at a getaway car of a burglar just to stop him from fleeing. But if that burglar tries to run the agent over (threatening the agent’s life), the rules change. Every shooting by an agent is afterwards thoroughly reviewed by internal affairs and legal offices for legality and policy compliance, so agents are very mindful of this standard. The FBI provides extensive firearms and judgmental training. The saying is, *“We don’t shoot to wound; we shoot center mass to stop the threat.”* That means if lethal force is justified (imminent threat of death/serious harm), agents aim for the torso – the most effective stopping target – understanding it may be fatal. They don’t try trick shots or shooting weapons out of hands; that’s Hollywood, not policy.

For **non-deadly force**, agents follow the Fourth Amendment's "objective reasonableness" standard from *Graham v. Connor* (1989). They can use physical force, handcuffs, takedowns, pepper spray, etc., as long as the amount of force is reasonable given the suspect's behavior and the situation ⁶⁰. For instance, if a suspect actively resists arrest (flailing or striking), agents are justified in using greater force (tackling to the ground, using joint locks or kicks, etc.) than if a suspect is compliant. If a suspect is armed or particularly dangerous, using more force (or SWAT with flashbangs, etc.) at the outset is reasonable. By 5–7 years in, an agent has likely arrested dozens of suspects and knows how quickly situations can turn violent. The FBI's approach is to **maximize officer safety while minimizing unnecessary harm**: use loud verbal commands, show a strong presence (e.g. multiple agents, armored vests, maybe an FBI SWAT team for high-risk arrests) to encourage the suspect to surrender peacefully. They escalate force in a controlled manner **only if needed**. Agents carry non-lethal options like batons and pepper spray (in the 90s) and will use them if a fight ensues. Importantly, if agents were to use excessive force that "shocks the conscience" (e.g. beating a surrendering suspect), it could not only lead to internal discipline or civil lawsuits (Bivens actions for constitutional torts) but also risk evidence being thrown out if the brutality was closely tied to obtaining it. So professionalism is emphasized.

(Example: A fugitive is barricaded in a house and has threatened to shoot. The FBI surrounds the place with SWAT. Agents over a loudspeaker: "This is the FBI – come out with your hands up!" The suspect fires a shot out the window. At that point, if an agent has a clear shot at the suspect and reasonably believes the suspect poses an imminent deadly threat, the agent can shoot (deadly force justified). If the suspect instead comes out and drops the gun but then tries to punch an agent, they'll use physical force to subdue him but not lethal force. Throughout the encounter, each use of force option is guided by what is objectively reasonable to protect people and control the suspect.)

After the Arrest – Custody Procedures: The moment a suspect is safely in custody (handcuffed and under control), agents will **search the suspect thoroughly**. This is the **search incident to arrest** as mentioned: agents check the person for any weapons (for safety) and for evidence (which can be seized). Any items seized (e.g. a knife, a note in pocket, a key) are bagged, tagged, and later logged into evidence. The suspect is then transported to either the FBI field office or a local jail for processing. It's FBI policy to formally advise the suspect of their **Miranda rights** *prior to any custodial interrogation* – more on Miranda below, but typically as soon as practicable if agents intend to question the person, they will read the Miranda warnings from a card or form.

Agents also start the paperwork trail immediately. They will document the arrest and any spontaneous statements the suspect made in an **FD-302 report** (the FBI's standard report form) or on an arrest form (FD-41). By the time of the initial court appearance, the AUSA will have prepared the complaint or will present the indictment, and the FBI agent may have to provide a short **"lock-up" affidavit or testimony** to establish the basic facts of the case for the court's records (especially if seeking detention). In violent crime cases, the government often requests that the defendant be held without bail. The agent might have to testify at a **detention hearing** about the defendant's dangerousness or flight risk – for example, describing the violence of the crime or any threats made – to help convince the judge that no set of release conditions would protect the community ⁶¹. Under the Bail Reform Act of 1984, defendants who pose a serious danger or risk of flight can be detained pre-trial. An experienced agent comes prepared with a summary of the case and the defendant's background (criminal history, etc.) for these hearings, as the judge will consider that information.

Interrogation and Miranda Rights

Upon arresting a suspect, FBI agents turn their attention to **interrogation** – obtaining information or a confession if possible – but this must be done under the well-known rules of *Miranda v. Arizona* (1966). Every American has heard the **Miranda warnings** on TV: “*You have the right to remain silent. Anything you say can be used against you in court. You have the right to an attorney during questioning. If you cannot afford one, one will be appointed for you...*”. Agents in 1997 know these by heart and carry a Miranda card or form with the exact wording ⁶² ⁶³. These warnings stem from the Fifth Amendment’s protection against self-incrimination and the Sixth Amendment right to counsel. In 1997, as today, **Miranda warnings must be given before any custodial interrogation**. In plain terms: if a suspect is in custody (not free to leave) and agents want to ask questions that are likely to elicit incriminating answers, they **must** advise the suspect of his/her rights and get a waiver.

- **Custody:** means the suspect is under arrest or in a situation equivalent to arrest (significantly deprived of freedom of action). If an FBI agent invites someone to come to the office to chat, and makes clear the person is free to leave, that’s not custody (more on non-custodial interviews below). But if the person has been handcuffed or formally arrested, or the circumstances are such a reasonable person would not feel free to leave, that’s custody.
- **Interrogation:** means questioning (or actions likely to elicit a confession or incriminating response). Routine booking questions (name, address, etc.) are not interrogation. But asking “Did you do it?” or “Where were you last night?” about the crime is interrogation.

Miranda Procedure: Agents will typically verbally advise the suspect of each right and often have a form (the FBI’s FD-395 “Advice of Rights” form) that the suspect can read and sign. A proper Miranda warning includes the right to remain silent, that anything said can be used in court, the right to an attorney before and during questioning, and the right to a provided attorney if they cannot afford one ⁶² ⁶³. The suspect must then **waive** these rights *voluntarily, knowingly, and intelligently* in order for questioning to proceed. A waiver can be oral (“Yes, I’ll talk to you”) but the FBI prefers a **signed waiver form**. Typically, an agent will read the suspect each right from the form, ask if they understand, have them initial each one, and then ask “Having these rights in mind, do you wish to talk to us now?” If the suspect says yes and perhaps signs the form, that’s a solid waiver ⁶⁴. The agent will note the time and start of interview. If the suspect refuses to sign but says they’ll talk, the agents can proceed (oral waiver is still a waiver), but a signature is great evidence that the waiver was real.

If the suspect invokes their rights instead of waiving, the interrogation must stop. There are two distinct invocations:

- **Right to Remain Silent:** If the suspect says *anything indicating they don’t want to talk*, e.g. “I don’t want to say anything” or even just stone-cold silence in response to questioning, the agents must **scrupulously honor** that and cease interrogation ⁶⁵ ⁶⁶. They can’t badger or keep pushing questions after a clear invocation of silence. However, agents **may** re-approach the suspect after a significant lapse of time and try again, as long as they re-Mirandize and the suspect is willing. What counts as “significant” isn’t fixed; FBI practice in the ‘90s often was to wait at least a couple of hours, or until the next day, before attempting a second interview ⁶⁷. If the suspect again refuses to talk, that’s it – they stop. The idea is to respect the decision but allow that a suspect might change their mind later.

- **Right to Counsel:** If the suspect says **anything that can be reasonably understood as “I want a lawyer”**, then *all questioning must cease immediately* and agents cannot reinitiate **at all** ⁶⁸ ⁶⁹. This is the *Edwards v. Arizona* (1981) rule: once the right to counsel is invoked, the only way questioning can resume is if **the suspect** reinitiates communication and a new waiver is obtained ⁶⁸. In practice, FBI agents treat a request for a lawyer as a full stop. They will end the interview politely and arrange for an attorney (through the court if necessary, since by invoking, the suspect is effectively saying they won’t answer questions without counsel). Often, this means no more interrogation that day – questioning might not resume for days or weeks until the suspect has a lawyer and that lawyer permits an interview (which is rare), or the suspect on their own decides to initiate conversation again. Agents **absolutely respect** a clear request for counsel – attempting to question after that point would not only get any statements thrown out, it could lead to disciplinary action against the agent for rights violations ⁷⁰ ⁷¹. *Example: John Doe is arrested and given Miranda. He says, “Maybe I should talk to a lawyer.” The agents will clarify – “Do you want an attorney right now?” If he says “Yes,” the agents stop questioning immediately. They might say, “Okay, we will stop until you have a lawyer,” and that’s it. They will not resume questioning unless John himself later says, “You know what, I’ll talk without my lawyer present” (and they’d get a lawyer waiver in writing).*

Any statement obtained in violation of Miranda (i.e. after an invocation that was not honored) will be inadmissible in court. Agents know that defense attorneys will file motions to suppress any confessions if there’s a hint of a Miranda problem, so they are very careful. Often they will **record the exact words of an invocation** in their notes and immediately terminate the interview to remove any doubt.

Custodial vs. Non-Custodial Interviews: One way FBI agents increase their odds of getting useful statements is by conducting **non-custodial interviews** whenever possible. Miranda only applies to custodial interrogation; if a suspect hasn’t been arrested and is speaking voluntarily, agents don’t have to Mirandize them (and anything they say can still be used). Thus, a common FBI strategy is to invite the **suspect to an interview in a non-threatening setting before making an arrest**. For example, agents might approach someone at their workplace or call and ask them to come down to the office “to help clarify some matters” – making it seem like they are just a person of interest, not necessarily the prime suspect. The agents will not restrain them and may even tell them, “You are not under arrest; you are free to leave at any time. We’d just like to ask a few questions.” If the person agrees to talk under those conditions, it’s a legitimate **non-custodial interview** – no Miranda warning is required ⁷² ⁷³. The suspect might not realize they’re the target and often people talk in these circumstances, providing incriminating admissions. This is completely legal: since they are not in custody, their statements are admissible (assuming no coercion is used). Seasoned agents know to **clearly document that the interview was non-custodial** (e.g. note that “Subject was told he was not under arrest and was free to leave” at the start of the conversation). If during the interview the suspect implicates themselves to the point the agents decide to arrest then and there, the agents will pause the interview, formally arrest the person, Mirandize them, and then continue questioning (if the now-arrested suspect waives rights) ⁷⁴ ⁷⁵. It’s a bit of a dance, but done properly it maximizes information. FBI interview rooms in the ‘90s were often designed to be non-intimidating – a simple office-like room – and agents in plain clothes would engage in conversational tone. They might even refrain from immediately jumping to arrest to get the person talking.

(Scenario: Agents suspect Jane Smith of being the getaway driver in a string of bank robberies. Instead of arresting her outright at home, they call her and say, “We’re investigating some of the robberies and your name came up. We know you knew one of the robbers. Would you be willing to come by and answer a few questions? You’re not under arrest – we just need your help.” She comes to the FBI office, is seated in an interview room (door

not locked), and agents say, “Thanks for coming, you’re free to go at any time of course, you’re not under arrest. We just want to understand what happened on March 5.” Jane, thinking she might talk her way out or help her friend, ends up admitting she drove the car. At that point, the agents have enough to arrest. They stop, say “Alright Jane, at this point we do have to place you under arrest for aiding the robbery,” handcuff, Mirandize her, and then possibly get a post-arrest confession as well.)

Public Safety Exception: There is a narrow emergency exception to Miranda known from *New York v. Quarles* (1984). If there’s an **immediate public safety threat**, agents can ask questions without first Mirandizing, and the statements may still be admissible. The classic example: a suspect is arrested and agents see an empty gun holster on him – before reading rights, an agent demands, “Where’s the gun?!” to find the weapon that could harm someone. The Supreme Court recognized that the need to neutralize an imminent danger outweighs the Miranda requirement in that moment ⁷⁶ ⁷⁷ . The FBI keeps this **“public safety exception”** in mind for extreme cases, like if a suspect has planted a bomb set to go off imminently, agents will immediately question about the bomb’s location without stopping to give Miranda warnings ⁷⁸ . The suspect’s answers to those emergency questions could be used in court even though no warnings were given, because lives were at stake ⁷⁷ . However, this exception is limited to *only those questions necessary to end the immediate danger*. The agents must Mirandize as soon as the public safety threat is secured. In practice, this is rare but important. (E.g. Agents arrest a terrorist bombing suspect: “Is there another bomb? Where is it?” – no Miranda needed for that. Once they find the bomb and make it safe, they Mirandize before any further interrogation about the crime itself.)

Interrogation Tactics and Conduct

Once Miranda issues are out of the way (the suspect has waived rights, or the interview is non-custodial), FBI agents employ various **interrogation techniques** to draw out the truth. The overarching rule is that confessions must be **voluntary** – obtained without coercion, force, or undue promises – or they won’t hold up in court. Within that constraint, agents have some leeway in how they question. Some notable tactics and rules:

- **Deception is allowed (to a point):** It may surprise some, but law enforcement **can lie to suspects** during interrogation about certain things. For instance, an agent can falsely claim “Your accomplice already told us everything” or “We found your fingerprints on the gun” even if those things aren’t true, as a psychological ploy ⁷⁹ . The courts have held that *mere deception* does not by itself make a confession involuntary. The FBI uses such tactics sparingly but effectively – e.g. presenting fake “evidence” or citing non-existent witness statements to induce a suspect to confess or to catch them in a lie. **However, agents cannot fabricate a document and have the suspect sign it** (that would be more than verbal deception), nor can they misrepresent the fundamental nature of the investigation (e.g. pretend to be the suspect’s lawyer!). The allowed trickery is usually about evidence or what others have said.
- **No improper promises or threats:** Agents **cannot threaten harm** or use physical intimidation. They also generally cannot make specific promises of leniency beyond their power. For example, an agent should not promise “If you confess, we won’t charge you” or “You will get probation” – agents don’t control charging or sentencing, the AUSA and court do. At most, an agent can say, “I’ll let the prosecutor know you cooperated; it could help you,” which is a mild encouragement that doesn’t guarantee anything. Promises of help or threats of harsher treatment can render a confession

involuntary by overbearing the suspect's will ⁸⁰. FBI training emphasizes **rapport-building** over threats.

- **No coercion or deprivation:** Obvious no-no's include violence, torture, denying food/water or sleep for inordinate times, or extreme psychological pressure (like interrogating non-stop for days on end, or saying "If you don't confess we'll have your children taken away" without basis). These would likely result in a suppressed confession and possibly civil liability. FBI agents in the 90s were mindful of the abusive interrogation practices of the distant past (the "third degree" tactics from mid-20th century) and avoided anything that might come close. A voluntary confession is the goal; an involuntary one is useless or worse ⁸¹.
- **Building Rapport & Theme:** Often, instead of heavy-handed tactics, FBI agents use a conversational, sympathetic approach. A common method is for agents to act like they **understand the suspect's situation** and give them a chance to provide an explanation. They might minimize moral blame ("I know you didn't mean for anyone to get hurt, it just happened, right?"), offer face-saving scenarios, or blame others ("Sounds like that other guy dragged you into this"). These **themes** are meant to make it easier for the suspect to admit guilt by providing a narrative that still preserves some self-respect. As long as agents don't promise legal outcomes, this psychological approach is perfectly legal and often effective.

(Example: Two agents interrogate a suspected bank robber. One might say in a friendly tone, "Look, I think I understand – you lost your job, you have kids to feed, and the bank had all that money insured anyway. You didn't want to hurt anyone; that teller got scared and things went wrong. I'd like to hear your side so folks know you're not some cold-hearted criminal." This kind of approach can lead the suspect to confess while rationalizing his actions. The agents haven't promised him anything, but have made confession psychologically easier.)

- **Use of Evidence:** FBI agents often strategically withhold some evidence during interrogation or reveal it gradually to confront lies. For instance, they might let a suspect deny being at the crime scene for a while, then suddenly show a photo from a security camera proving he was there. This can break a suspect's resistance or catch them off guard. Alternatively, agents might imply they have more evidence than they actually do ("We've got multiple fingerprints" when they only have one partial print) to encourage honesty. Agents must be cautious not to fabricate evidence in a way that could later mislead the court or jury – but in the interrogation room, implying you have a strong case can lead a suspect to give up and cooperate.
- **Monitoring and Two-Agent Teams:** FBI interviews are typically conducted by two agents – one takes lead in questioning, the other takes detailed notes. In the 1990s, the FBI **generally did not audio or video record interrogations** (unlike today, where recording custodial interviews is more common). Instead, the second agent scribbles notes and later writes up an **FD-302 report** summarizing the suspect's statements ⁸² ⁸³. This means the exact wording of confessions isn't always preserved, so agents are trained to quote key admissions verbatim in their notes and 302 ("Subject stated, 'I shot him,' when asked who pulled the trigger"). The lack of recording was policy/tradition at the time – the belief was that suspects speak more freely off-camera. But it also meant agents had to be meticulous note-takers. By law, the defense is entitled to these agents' reports after the agent testifies (per the Jencks Act), so any discrepancies or embellishments can be exploited by defense attorneys. Therefore, a wise agent keeps 302s factual and avoids any guesswork or analysis in them ⁸⁴ ⁸⁵. The 302 is supposed to be a *fair summary*, not a transcript,

and it is not itself evidence – rather, the agent’s testimony about what the suspect said is the evidence. Defense lawyers in the 90s often attacked the lack of recording by cross-examining agents on their ability to remember or whether the report was “slanted.” Agents would respond that writing 302s is part of their regular duties and they accurately captured the suspect’s own words to the best of their ability. (Side note: in the mid-2000s the FBI did move toward recording certain interviews, but in 1997, most FBI interrogations were not electronically recorded.)

- **Signed Statements:** If a suspect does fully confess, agents may try to get them to **sign a written confession** or a typed statement. However, many suspects are reluctant to put it in writing even after speaking it. It’s not required to have a valid case (the agent can testify to the oral confession), but a signed statement is icing on the cake. Alternatively, sometimes agents will write out a quick summary of the confession in the suspect’s own words and ask them to sign it or initial corrections. This can be used to bolster the admissibility and credibility of the confession.
- **Ceasing the Interview:** Agents know to **honor any invocation** of rights that occurs mid-interrogation. If at any point a suspect who initially waived starts feeling uncomfortable and says, “I don’t want to talk anymore” (invokes silence) or “I think I should get a lawyer now” (invokes counsel), the agents will stop immediately ⁸⁶. They might ask a clarifying question if it was ambiguous (“Are you saying you want an attorney?”), but they will not try to talk the suspect out of it. They will document the time the interview ceased and won’t reinitiate. The interview ends courteously. This way, whatever was said up to that point is usable, and the agents have not violated rights. They may try again another day if only silence was invoked, as mentioned, but they will **never** badger someone who has invoked counsel – that line is bright and clear.
- **Polygraph Examinations:** By the late 90s, the FBI sometimes used the polygraph as a tool in investigations. It’s entirely voluntary – a suspect or person of interest has to consent to a polygraph test. While the results of a polygraph (“passed” or “failed”) are generally **not admissible** in court (most courts won’t allow them as evidence), the process can be useful to agents. A trained FBI polygraph examiner (also an agent) conducts the test, which often involves a **pre-test interview** and a **post-test interrogation**. Typically, almost everyone “fails” according to the machine when the examiner believes they’re lying – polygraphers are skilled at using the device as a prop to induce confessions. In a common scenario, after the chart shows deception, the polygraph examiner might tell the subject, “You haven’t been completely truthful. The charts don’t lie. Is there something you want to clear up about this crime?” Suspects, believing the machine has caught them, often make partial admissions or full confessions at that point. Those *verbal statements* are admissible (with Miranda waiver), even though the polygraph result itself is not ⁸⁷ ⁸⁸. The FBI agent in charge of the case will observe via two-way mirror or from outside and then use whatever the suspect admits during the polygraph session as evidence or leads. In Phoenix, for example, if a murder suspect denied everything but then during a polygraph said “Fine, I was there but someone else shot the victim,” that statement is absolutely something the case agent can use to further the case.

In summary, FBI agents approach interrogations methodically: first **advise rights**, obtain a waiver, then use a mix of strategies (rapport, evidence confrontation, strategic deception) to get to the truth – **all within the rules**. A 5–7 year veteran knows how to walk the fine line between persuasion and coercion. They also know **when to quit** – pressing too hard or ignoring a rights invocation will only hand the defense a victory in court via suppression. As one might say, *“You can’t strong-arm a confession – you have to outsmart the suspect within the rules.”*

Working with Informants and Undercover Operations

Not all information comes from overt investigation – often, **human sources** and undercover work are crucial, especially in criminal enterprises like gangs, drug rings, or for solving ongoing violent crimes. An agent on a violent crime squad in 1997 might have a stable of informants or might engage in undercover stings. Both of these areas are governed by strict guidelines and present legal pitfalls (like entrapment, informant misconduct) that agents must navigate carefully.

Confidential Informants (CIs): The FBI has long relied on informants – people who provide information or assistance, often from within criminal circles. By the 90s, the Attorney General's Guidelines on the Use of Informants were well-established, requiring formal procedures to “open” and operate an informant. An agent who recruits a CI must go through a formal approval process: filling out informant files, coding them with an identifier (to protect identity), and recording any **authorization for the informant to engage in certain activities**. Informants can be motivated by money, leniency in their own cases, or rivalry, etc. Key legal concerns when using informants include **entrapment** and **informant criminal activity**.

- **Entrapment:** Entrapment is a defense that argues the government induced a person to commit a crime they were not otherwise predisposed to commit. The legal test (from cases like *Jacobson v. United States* and earlier Supreme Court rulings) is often phrased as: “*Did the government agents originate the criminal design, implant in an innocent person's mind the disposition to commit it, and induce its commission?*”⁸⁹ If yes, and the person was not predisposed, it's entrapment and can lead to an acquittal. The FBI is **very careful** not to entrap. Agents instruct their informants: *do not pressure or persuade someone to do something they weren't already inclined to do*. It's okay to provide an **opportunity** for crime, but not to **manufacture the crime** in the mind of an otherwise innocent person⁸⁹. For example, if an informant approaches a suspect and says, “Hey, can you sell me some stolen guns? I know you have connections,” and the suspect has in fact dealt guns before, this is likely fine – the suspect was predisposed and the informant is just offering an opportunity. But if the suspect has *never* dealt guns and keeps refusing, and the informant keeps upping the offer (“C'mon, I'll pay double, I really need it”) to the point of persuasion, that crosses toward entrapment. The **key factor is predisposition**: was the target ready and willing to commit this crime before the government's involvement? Agents will often **document evidence of predisposition** – like the suspect's prior similar crimes, or recorded statements of the suspect eagerly agreeing, etc. If there's doubt, the FBI would rather not pursue the sting than risk entrapment. In any undercover operation or informant-driven case, the case agent is prepared to testify, “*The defendant was already willing to do this; we merely gave him the chance.*” That is the death knell to an entrapment defense^{90 91}.

- **Informant Crimes (authorized and unauthorized):** Informants are often criminals themselves, which is why they have access to targets. The FBI can **authorize limited criminal activity** by informants if necessary for the investigation, but there are restrictions. For instance, an informant might be allowed to participate in a drug deal (since buying/selling drugs is technically illegal) as part of evidence-gathering, but an informant would **never** be permitted to commit violence like partake in a murder. Crimes of violence are off-limits. The case agent must clearly instruct the informant what they are *not* allowed to do. If an informant goes rogue and commits a serious unauthorized crime, not only could it ruin the case (government informant involvement might taint evidence), but the informant will be liable and the agent could be in trouble for poor handling. For example, if an informant is told he can buy illegal weapons from a suspect (to help the FBI sting) but instead he himself pressures the suspect to go rob a bank together, that would be wildly beyond scope – any

resulting case could implode as entrapment or simply as criminal conduct by the informant beyond FBI sanction. Thus, agents keep their informants on a tight leash and document any “otherwise illegal activity” they authorize in advance (with supervisor and DOJ approval in many cases). If a CI does cross the line, the FBI will usually shut them down as a source and report it. A slogan is sometimes, “Informants can lie and informants can die, but they can’t be allowed to just commit crimes.” They are an investigative tool, not a free pass for mayhem.

(A Phoenix case illustration: Suppose a gang informant tells his FBI handler that a gang leader wants him to help in a planned kidnapping. The FBI absolutely does not want a kidnapping to actually occur. They might use the informant to gather intel on the plan, then intervene (arrest the gang) before the crime happens. They would never say “Go along with it and we’ll rescue the victim later” – too risky and essentially facilitating a violent crime. In contrast, if it was a drug deal, they might let the informant go through with a controlled buy, since the “harm” can be controlled and evidence gathered. The line is drawn at violent acts.)

Undercover Operations: An undercover agent (or “UCE”) is an FBI agent who assumes a covert identity to infiltrate criminal activity. While much undercover work in the Bureau is associated with long-term cases (mob, terrorism, etc.), violent crime squads might use short-term undercover tactics – for example, posing as a hitman in a murder-for-hire sting, or as a fence to buy stolen goods from robbers. In 1997, all undercover operations had to go through an approval process, especially longer-term ones, through FBI Headquarters and DOJ. This included creating a written UC proposal, identifying any “**churning**” (using criminal proceeds in the operation) or sensitive circumstances, and getting sign-offs. The reasons are to manage risk (undercover work is dangerous) and legality.

From a legal standpoint, undercover agents are allowed to **lie about their identity and criminal intent** – that’s the whole point of undercover. Posing as a criminal associate and recording conversations does not violate Miranda or the Fourth Amendment, because the targets freely choose to talk with the undercover (there’s no custody, and one party – the UCE – consents to any recording) ⁹² ⁹³ . For example, if an undercover agent meets with a murder suspect at a bar and the suspect brags about killings, all that is admissible. No Miranda needed because the suspect didn’t know he was talking to law enforcement (Miranda only protects against *custodial* interrogation by known government agents). This tactic was blessed by *U.S. v. White* (1971), which said a person runs the risk that their confidant might actually be a government agent recording the talk ⁹² .

One-party consent recordings: The FBI often equips undercovers or informants with recording devices (“wires”). Legally, if one party to the conversation consents (the agent or informant), it’s not considered eavesdropping – no warrant is required ⁹⁴ . This is a powerful tool. In extortions, kidnappings, etc., FBI will often wire up the victim’s family member or a cooperative accomplice to capture incriminating talks. In Phoenix, for example, if a kidnapping ransom call comes in, agents will record those calls with the victim family’s consent. Or if a hitman solicitation is reported, an undercover might record the meeting where the suspect says “I’ll pay you \$5,000 to kill so-and-so.” Those tapes are golden evidence.

Limits on Undercover Behavior: Undercover agents, like informants, cannot go around committing crimes as part of their cover except minor stuff allowed in the operation plan (e.g. they can pretend to launder money in a sting, but they can’t actually seriously harm someone). They also may engage in limited buys of drugs or contraband to maintain credibility, but always minimizing lawbreaking. The **Undercover Guidelines** in the 90s spelled out what required prior approval – for instance, “**churning**” (reinvesting criminal proceeds to keep the cover, like using drug money to buy more drugs) needed special approval.

Any participation in violence was strictly forbidden. The idea is the undercover can role-play being a criminal, but must not become an actual perpetrator of serious crimes. They will try to steer scenarios in a way to avoid having to do anything illegal themselves. If asked to commit a violent crime (“Prove you’re not a cop, help us beat up this guy”), an undercover would have to find a way out – either by talking his way out or pulling out of the operation. Sometimes, undercover ops are ended early if the bad guys insist on the agent doing something off-limits.

(Murder-for-hire example: An FBI agent goes undercover as a hitman after a wife solicits someone to kill her husband. The agent meets her, she offers money and gives details. The agent will not actually carry out any violence. Instead, once enough evidence is gathered (like a recorded conversation of her saying “Yes, kill him, I’ll pay you \$10k”), the FBI will stage an arrest or some scenario to conclude the case – often they might even do a sting where they show the woman a fake photo of the husband “dead” to elicit her confirming the plot, then arrest her. Throughout, the undercover agent acted willing to do the murder but of course never would – the goal is to capture her intent and payment, then safely wrap it up.)

The mantra agents follow for undercover and informant work is: **“Don’t create crime, detect and infiltrate it.”** They must be proactive yet cautious, providing opportunities for criminals to act but not pushing unwilling persons into crime.

Evidence Handling and Forensics

Building a strong case isn’t just about catching suspects – it’s about **collecting and preserving evidence** so it holds up in court. An experienced violent crime agent in 1997 spends a lot of time on evidence handling: from the crime scene to the FBI Laboratory to the courtroom, the integrity of evidence is paramount.

Crime Scene and Physical Evidence: When FBI agents respond to a crime scene (often alongside local police), if it’s going to be a federal case, FBI Evidence Response Team (ERT) members or agents will methodically document and collect physical evidence: shell casings, blood samples, weapons, documents, etc. Each piece of evidence is carefully bagged, labeled, and logged. The agent uses an **evidence log (FD-192 form)** to record every item, with a unique inventory number ⁹⁵ ⁹⁶ . From that moment on, a **chain of custody** is maintained. This means they track who handles the evidence at each step, to later testify that the item in court is the same item taken from the scene. Breaks in chain of custody can lead to evidence being challenged (e.g. “How do we know someone didn’t tamper with it?”). So agents guard against that: seals on evidence bags, evidence vaults for storage, signatures whenever custody transfers. For instance, if an agent collects a bloodstained shirt, they’ll seal it in a bag, fill out a custody label, transport it to the FBI lab or evidence room, and have the receiving technician sign for it. The **rule** is that every handoff is documented. Agents treat evidence like gold – it can make or break the case, and if it’s lost or tainted, the case could collapse ⁹⁷ ⁹⁸ .

By the 1990s, **forensic science** was making big strides. FBI agents in violent crime cases frequently leverage forensic labs for things like:

- **Fingerprint identification:** The FBI’s Automated Fingerprint Identification System (AFIS) was coming online, allowing electronic comparison of prints against a national database. In ‘97, an agent could lift latent prints from a scene and send them to the lab to search AFIS for matches.
- **DNA analysis:** The mid-90s saw the FBI’s DNA lab developing and the national DNA index (CODIS) in its infancy. If a rape or murder had biological evidence (blood, semen), FBI agents would seek DNA

profiling. While not as instantaneous as modern times, by '97 DNA could definitively link a suspect to a crime scene. Agents would obtain known samples via court order (cheek swabs, blood draws) from suspects for comparison.

- **Ballistics:** Firearms and toolmark analysis (and the nascent National Integrated Ballistic Information Network – NIBIN) allowed the lab to match bullets or shell casings to specific firearms, or link shooting scenes by the markings on bullets/casings. Agents might recover bullets from a victim and suspect a certain gun was used – the lab can test-fire that gun and compare the rifling marks microscopically.
- **Trace evidence:** Fibers, hair (which by late 90s could also sometimes yield DNA if root attached), gunshot residue tests, etc. The FBI Lab was considered top-tier; agents utilized it for the full range of analyses. For example, in a Phoenix case, if a suspect's car had carpet fibers that match fibers on a kidnap victim's clothing, that's powerful circumstantial evidence – the lab would do that comparison.

Agents coordinate closely with forensic scientists. The agent collects and sends the evidence to the lab, then later will get reports of the results. In court, typically the **forensic examiner** (scientist) testifies to the results (e.g. "The DNA profile from the blood at the scene matches the defendant's DNA with 1 in 6 billion probability" or "the fingerprints lifted from the getaway car match the defendant's prints"). The agent's role is to **lay the foundation**: testifying that "I found this evidence, I packaged it, I sent it to the lab, and later I received the lab results." This establishes that the evidence tested is the same evidence from the crime. The agent does not attempt to explain the complex science – that's for the lab expert, but the agent confirms the chain and that they did indeed recover it properly ⁹⁹ ¹⁰⁰. By 1997, courts were applying the *Daubert* standard (from a 1993 Supreme Court case) to determine the admissibility of scientific evidence, meaning the methods had to be reliable and accepted. FBI lab techniques like fingerprint matching, bullet comparison, etc., were generally well accepted (though in later decades some forensic methods came under scrutiny, in 1997 they were often taken as gospel). Still, agents had to ensure the lab followed proper procedures so the evidence would be admissible.

Brady Material: FBI agents are legally and ethically bound to disclose exculpatory evidence. Under *Brady v. Maryland* (1963), prosecutors (and thus agents as part of the prosecution team) must turn over to the defense any evidence that is **exculpatory or mitigating** – i.e. that could help show the defendant's innocence or lessen their culpability. The FBI agent's duty is to inform the AUSA of any such evidence; the AUSA then decides what must be disclosed to defense. Examples: if during the investigation an eyewitness first misidentified someone else before identifying the defendant – that initial misidentification is exculpatory and must be disclosed. If an informant the FBI used has a history of lying or made statements favoring the suspect's innocence, that must be shared. Or if the FBI came across evidence that another person might have done the crime, they can't hide that. **Hiding exculpatory evidence is a huge no-no** – it can wreck the case (leading to reversal of conviction) and wreck an agent's career if done willfully ¹⁰¹ ¹⁰². Therefore, agents meticulously document and report all evidence, not just the incriminating stuff. In internal case meetings, agents and AUSAs will discuss what needs to be handed over to be compliant with Brady.

Jencks Act and Witness Statements: In federal practice, after a government witness (including an agent) testifies at trial, the defense has the right to obtain any prior statements by that witness that relate to their testimony (18 U.S.C. § 3500, the Jencks Act). For FBI agents, this usually means their FBI 302 reports of interviews, or their written statements in reports, become disclosable once they testify to those matters ¹⁰³ ¹⁰⁴. Practically, these days the DOJ often turns these over a bit before trial to avoid delays. What it means for agents in 1997 is: every report you write about witness interviews or about the case *could eventually be read by the defense and shown to a jury*. If an agent exaggerates or puts assumptions in a 302, a savvy

defense attorney will use that to impeach the agent on cross (“Agent, your report says the suspect ‘was definitely the shooter’ – but you didn’t actually see the shooting, did you? Isn’t that just your assumption?”). So good agents keep their reports factual and reserved, to leave little ammo for cross-examination ¹⁰⁴ ¹⁰⁵ . Also, any deals or payments made to informants or witnesses have to be disclosed so the defense can explore bias ¹⁰⁶ . The FBI provides that info to the AUSA via memos, and it will come out at trial that, say, an informant was paid \$5,000 or promised a sentencing recommendation – and the agent will calmly acknowledge that on the stand (no point hiding it – the defense has a right to probe it, and the prosecution will preempt it by bringing it out themselves usually).

In short, evidence handling is about **preserving integrity and transparency**. The experienced agent follows the rules: collect carefully, document chain of custody, honor disclosure obligations (Brady, Jencks), and write honest, thorough reports. That way, by the time of trial, the focus is on the evidence proving the defendant’s guilt, not on side issues like mishandled evidence or withheld information.

Federal Court Process: From Charge to Trial

Once the FBI’s investigation has gathered enough evidence, the case moves into the formal federal prosecution stage. An agent’s job isn’t over at arrest; they remain heavily involved through the legal process, working with prosecutors and testifying as needed. Here’s a rundown of how a violent crime case proceeds in the federal system (circa 1997) after an arrest, and the agent’s role at each step:

Charging – Complaint or Indictment: Many FBI cases begin with a **criminal complaint**. A complaint is basically a sworn affidavit (usually by the agent) that outlines the essential facts of the offense, filed with a magistrate judge to get an arrest warrant. Agents use complaints to move fast – for example, right after arresting a suspect without a prior warrant, the agent will swear out a complaint to formally charge the suspect and establish probable cause on the record ¹⁰⁷ ¹⁰⁸ . The complaint is a temporary charging document; by law (the Speedy Trial Act), if someone is charged by complaint, they must have a **preliminary hearing or indictment** within a short time (usually 10 days for a prelim, 30 days for indictment). In most serious cases, the USAO skips the prelim and goes to a **grand jury indictment** within a couple of weeks. An **indictment** is returned by a grand jury (16–23 citizens who hear evidence in secret). For a federal felony, the Fifth Amendment requires indictment by grand jury unless the defendant waives it ¹⁰⁹ . The FBI agent works with the AUSA to present the case to the grand jury – typically the agent is the main witness in the grand jury, summarizing the evidence. If at least 12 grand jurors vote in favor, they return a “true bill” (indictment). The indictment lists the charges (counts) and is the formal charging document moving forward. In violent crime cases, indictments might include multiple counts (e.g. two bank robberies, an aiding and abetting charge, a firearms count) and sometimes cover multiple defendants if it’s a crew. Agents might see additional charges added that emerged from the investigation, for example using **18 U.S.C. § 924(c)** gun charges or related offenses like conspiracy. Once indicted, the case is on track for trial unless a plea is reached.

Initial Appearance & Arraignment: Right after arrest, as mentioned, the defendant sees a magistrate judge for an initial appearance (usually within 24 hours or the next weekday). The agent doesn’t usually talk at this short hearing, except perhaps to answer basic questions or ensure the complaint is in order. If a complaint was the charge, a **preliminary hearing** might be scheduled where the AUSA will call the agent to show probable cause – but often the indictment comes before that, mooting the prelim. Once indicted, there’s an **arraignment** where the defendant enters a plea (almost always “not guilty” initially). The agent often just observes these, but takes notes on any new defense attorney appearance or any conditions set by

the court (like if the defendant is released on bond with conditions, agents might have to assist in supervision or at least be aware).

Discovery and Pre-Trial Motions: After arraignment, the case enters discovery and motions phase. In federal cases in 1997, discovery is somewhat limited – the government turns over things like defendant’s statements, criminal history, documents and tangible evidence, lab reports, etc. The FBI agent works with the AUSA to compile the discovery material. For instance, the agent will provide copies of all 302s of statements made by the defendant (which are the defendant’s own statements and thus discoverable), copies of evidence photos, etc., to the prosecutor who forwards to defense ¹¹⁰ ¹¹¹ . The agents do **not** generally have to turn over internal reports or witness statements at this stage (those often come later as Jencks material), but any Brady material must be disclosed.

Defense attorneys may file **motions to suppress** evidence, claiming some was obtained illegally (e.g. “The search of the house violated the 4th Amendment” or “My client’s confession was coerced”). When such motions are filed, the agent is crucial in assisting the AUSA in writing the response (providing detailed recollection of how they obtained consent, for example) and will likely testify at the suppression hearing ¹¹² ¹¹³ . For example, if the defense argues that a search was without valid consent, the agent who obtained the consent will take the stand and explain, “I asked the defendant if I could search, he signed this consent form freely, here it is.” The judge then decides to grant or deny suppression. A good agent, by having done everything by the book, makes it easy for the AUSA to defend the evidence and for the judge to deny the motion.

Plea Bargaining: The majority of federal cases end in a plea deal rather than trial. By the time an agent has 5-7 years on, they’ve seen many defendants plead guilty. Agents are not the ones who negotiate pleas (that’s the prosecutor’s job), but their input is often sought ¹¹⁴ . For instance, an agent might strongly feel that only a plea to the top charge is acceptable due to the heinousness of the crime, or conversely might agree with a plea to a lesser count if it ensures a quick resolution and cooperation against others. AUSAs often ask agents, “What’s your take? Are we okay dropping Count 2 if he pleads to Count 1? What sentence do you think is fair given what you know?” The agent might respond, “We can drop the lesser charge, but I think given the violence he should get the higher end of the guideline range.” Agents also help during **proffer sessions** or **debriefings** if a defendant agrees to cooperate as part of a plea. In such meetings (which happen under a proffer agreement – statements generally can’t be used directly against them unless they lie), the agent will interview the defendant to gather intel on other crimes or co-conspirators. Everything the agent learns, they’ll later verify or follow up on. If a cooperation is ongoing, the agent often plays a continuing role (maybe running the now-cooperating defendant as an informant for a while).

Trial Preparation: If the case goes to trial, the FBI case agent is typically a star witness and also assists the prosecution in prep. The agent will help organize evidence exhibits (e.g. making sure the murder weapon is properly secured and available, photos are enlarged, transcripts of recordings are made). The agent meets with the AUSA to outline testimony for each witness, fill any holes, and ensure all logistics (witness travel, etc.) are handled. The agent will often be **“the case agent”** seated at counsel table with the prosecutors during trial, to assist by keeping track of testimony and retrieving evidence exhibits quickly when needed.

Trial Testimony: On the stand, the FBI case agent often serves as a **summary witness**, walking the jury through the case from start to finish ¹¹⁵ ¹¹⁶ . For example, an agent might testify: *“We opened an investigation after the July 1 robbery. We identified the defendant through fingerprints on a note. On August 5, I executed a search warrant at the defendant’s home and recovered this knife (Government Exhibit 12) with what*

appeared to be blood on it." The agent would then explain chain of custody and that the knife went to the lab which matched the blood to the victim ¹¹⁷ ¹¹⁸ . The agent introduces various pieces of evidence: photos ("Here's a photo of the getaway car we found at his house"), recovered items, etc., tying them together in a narrative. This helps the jury see the big picture. The agent also might testify about any **confessions or statements** the defendant made – e.g. *"After arrest, I advised him of his rights and he agreed to talk. He admitted being at the bank but claimed he was just there by coincidence,"* etc. Since any **cooperating witnesses or informants** likely testified (or their info was presented), the agent might also serve to corroborate them: e.g. *"Our informant told us ahead of time that John Doe was planning a robbery on May 3. We surveilled Doe on that day and indeed saw him meet with two associates – which matches what the informant said."*

On **cross-examination**, the defense attorney will try to poke holes or create doubt. Common tactics: question the agent's **personal knowledge** ("You weren't actually at the crime when it happened, correct?" – of course not, agents rarely witness the crime, but that's fine because evidence speaks through witnesses or forensics). They might challenge interrogation tactics: *"Agent, you lied to my client in that interview, telling him his friend confessed – correct?"* A good agent will calmly say, "Yes, that is a ruse we sometimes use; it's an allowed technique ⁹ ." The jury tends to accept that if presented honestly. Defense might also challenge evidence handling: *"Could someone have tampered with that knife while it was at the lab?"* The agent would explain how it was sealed and secured, making tampering highly unlikely ¹¹⁹ ¹²⁰ . By trial, an agent has been trained to testify clearly, **admit minor shortcomings** (no investigation is perfect) but emphasize the solid aspects. The credibility of a professional, prepared FBI agent on the stand is usually very high with jurors. Agents in 1997 already had a reputation for being thorough and objective – something an agent cultivates by always telling the truth and not overstating. Juries also respond well to tangible evidence, so the agent ensures things like the 911 tapes, the photos, the DNA results, etc., are all presented in understandable fashion.

Sentencing: If the defendant is convicted (by plea or verdict), there is a sentencing phase typically a couple of months later. A U.S. Probation Officer prepares a Presentence Investigation Report (PSR) that calculates the sentencing guideline range. The FBI agent might be contacted by Probation to provide case details or a victim impact statement. For violent crimes, the agent often knows the victims well by this point and ensures their voices are heard (sometimes victims speak at sentencing or submit letters). The agent also informs the prosecutor of any **aggravating factors** (like extreme cruelty, or uncharged conduct) that might justify a higher sentence, or any **mitigating factors** if they exist (rare for agent to argue mitigation, that's usually defense's job). In 1997, the **Sentencing Guidelines (effective since 1987)** were binding on judges (only minor departures allowed), so everyone paid a lot of attention to the offense level, criminal history category, etc. ¹²¹ ¹²² . For example, a bank robbery where a firearm was discharged and someone was injured would have enhancements that boost the guideline range. The agent makes sure the Probation Officer and AUSA have all the facts to apply those enhancements. Sometimes the agent will write up a summary of the case for the court or even testify at a **sentencing hearing** if there's a dispute (e.g., defense argues the gun wasn't actually used – the agent might testify that it was, to support the enhancement). In particularly serious cases – say a kidnapping where the victim was killed – the federal **death penalty** might be on the table (the Federal Death Penalty Act of 1994 expanded death-eligible crimes) ¹²³ . In such scenarios, an FBI agent's job becomes even more intense: they have to help gather evidence of aggravating factors for the penalty phase (like the heinousness of the crime, future dangerousness) and also any mitigating info must be provided. Ultimately, Main Justice (Attorney General) decides whether to seek death. Those are rare. A Phoenix agent might never work a death penalty case in their whole career, but if they do, they approach it with extreme care given the literal life-or-death stakes.

Throughout all this, the agent remains the central hub of the case – coordinating with AUSAs, communicating with victims, handling media inquiries through FBI office if needed (the FBI office has media relations, but agents sometimes participate in press conferences after a successful case resolution). By the end of a case, especially one that goes to trial, an agent might have spent hundreds of hours on reports and testimony. It's all part of seeing justice through. As the trial concludes and if a guilty verdict is rendered, agents quietly feel the reward of a job well done – a violent offender brought to justice under the rule of law.

Key Federal Statutes for Violent Crimes (1997)

To “talk the talk” like an FBI agent, it helps to know the key federal statutes by their numbers and names. Below is a quick reference toolbox of federal violent crime laws that a Phoenix field agent in 1997 would be familiar with, often citing the **Title 18** section numbers in discussions. These include what they cover and typical penalties:

- **18 U.S.C. § 2113 – Bank Robbery and Incidental Crimes:** Federally prohibits taking or attempting to take by force, violence, or intimidation anything of value from a bank, credit union, or savings & loan (any institution federally insured) ¹²⁴. Also covers assaults or killings committed during a bank robbery, and receiving or possessing money from a bank robbery. Penalties: up to 20 years for the basic offense; if a dangerous weapon was used or someone was assaulted (2113(d), armed bank robbery), up to 25 years ²; if a death results (2113(e)), possible **life imprisonment or death** (federal capital offense) ³. Example usage: “He’s charged with 2113 for that credit union heist, and because a teller was pistol-whipped, it’s an aggravated form.”
- **18 U.S.C. § 1201 – Kidnapping:** Makes it a federal crime to seize, confine, kidnap, abduct, or carry away and hold for ransom or otherwise any person, if the victim is taken across state lines or if any means of interstate commerce (like the mail or a phone) is used in furtherance of the kidnapping ¹²⁵ ¹²⁶. There’s also a provision that if the victim is not released within 24 hours, interstate transport is presumed ⁴ (so even a kidnapping purely within one state can become federal after 24 hours). Penalties: up to life in prison; if the victim was a child and certain aggravating factors or if the victim dies, it can be a death-eligible crime ¹²⁷ ⁵. This law originated with the Lindbergh baby case. In practice: if someone in Phoenix is kidnapped and the kidnappers drive into California or call the family from another state, the FBI takes jurisdiction under 1201.
- **18 U.S.C. § 1203 – Hostage Taking:** This implements an international treaty on hostage-taking. It’s used typically for terrorism cases (e.g. a terrorist group takes a U.S. citizen hostage). It’s not common in ordinary criminal cases and requires approval to use. Mentioned mainly for completeness, as an agent might know of it if a case involves foreign officials or international elements.
- **18 U.S.C. § 2119 – Carjacking:** Federal carjacking statute (added in the early ‘90s due to a rash of carjackings). It punishes taking a motor vehicle that has moved in interstate commerce (which is basically all cars) from a person by force, violence, or intimidation, with intent to cause death or serious harm ¹²⁸. Penalties are tiered: up to 15 years, or if serious bodily injury results, up to 25 years, and if death results, up to life in prison or death ⁶. This statute often overlaps with state charges, but the feds use it for particularly egregious cases or multi-state sprees. In Phoenix, for example, if a gang commits a string of armed carjackings, the FBI might adopt the case with 2119

charges. Agents might say “We’ll charge him under 2119 and he’s looking at 25 because the victim was badly hurt.”

- **18 U.S.C. §§ 2261, 2261A, 2262 – Interstate Domestic Violence, Stalking, and Violation of Protective Orders:** These were new as of 1994 (VAWA). §2261 makes it federal to cross state lines (or enter/exit Indian country) to commit a domestic violence crime against a spouse or intimate partner ¹²⁹ ¹³⁰. §2261A covers interstate stalking (traveling across state lines with intent to injure or harass and placing someone in reasonable fear, or using interstate communications to do the same) ¹³¹ ¹³⁰. §2262 covers crossing state lines to violate a restraining order. Penalties under these vary with the results: if permanent disfigurement or life-threatening injury occurs to the victim, up to life in prison ¹³²; if serious bodily injury, up to 10 years; if use of a dangerous weapon, up to 10; otherwise up to 5 years, etc. ¹³² ¹³³. Essentially, they scale from 5 years to life ⁸. These charges were cutting-edge in 1997, so agents would sometimes have to explain them to local police. *Example:* “Under 18-2261, if he drove from Arizona to Nevada to attack his ex-wife, that’s a federal case – interstate domestic violence – we can nail him for that in federal court.”
- **18 U.S.C. § 1951 – Hobbs Act Robbery/Extortion:** This law forbids robbery or extortion that “obstructs, delays, or affects commerce in any way or degree”. It’s very broad. In practice, any robbery of a business or a person where some logical connection to interstate commerce can be drawn can be charged (and courts have held even a minimal, potential or cumulative effect on commerce suffices) ¹³⁴ ¹³⁵. Prosecutors love the Hobbs Act for tackling local robbery crews federally. Punishment: up to 20 years in prison ¹¹ (and if it’s extortion under color of official right (corrupt public officials) or threat, same 20-year max). Often combined with §924(c) if a gun is used. *Example:* robbing a local convenience store – the store sells products from out of state, so that robbery can be said to affect interstate commerce. A Phoenix agent might charge a serial armed robber under Hobbs Act for multiple store robberies, to get stiffer federal time. (Hobbs Act is also used for extortion cases, like organized crime shaking down businesses.)
- **18 U.S.C. § 924(c) – Use of a Firearm in a Crime of Violence or Drug Trafficking Crime:** We discussed this in detail earlier. It’s essentially a sentencing enhancement statute that adds a mandatory consecutive term for using, carrying, or possessing a firearm in furtherance of a violent or drug crime. In 1997, the basic add-on was 5 years (if the gun was simply carried/used), 7 if brandished, 10 if discharged ¹², and higher (20 or 30 years) for machine guns or grenades, etc. No probation on these; they stack onto whatever else the person gets ¹². Agents and AUSAs deploy 924(c) counts to put extra leverage. If a bank robber fired a gun during the robbery, he faces the robbery charge (up to 25 years since it was armed) **plus** at least 10 more years for firing the gun ¹³⁶ ¹³⁷. Multiple 924(c) counts in one case stack consecutively (though in 1997, if multiple counts in same indictment, they might merge for first offense; after 1998 law change, each count = 25 years consecutive, but that’s beyond ’97). Often, an agent will mention 924(c) to the AUSA: “We have him on the gun too – that’s another 5 or 10 years guaranteed.”
- **18 U.S.C. § 111 & § 1114 – Assaulting or Killing Federal Officers:** §111 makes it a federal crime to assault, resist, impede, intimidate, or interfere with any federal officer (including agents) while they’re performing their duties. Simple assault is up to 1 year (misdemeanor), but if there’s physical contact or intent to commit another felony, it’s up to 8 years; if a dangerous weapon is used or the victim is injured, up to 20 years ¹³. §1114 covers attempted murder or murder of federal officers and employees, which can be punished by up to life or death (if murder) ¹³⁸. These laws come into

play if, say, during an arrest the suspect shoots at an FBI agent – he'll face charges under §111 (assault on a fed with a deadly weapon, 20-year max) or if an agent were killed, §1114 (possible death penalty scenario). Threats against agents or federal judges, etc., are covered under 18 U.S.C. § 115 (up to 10 years if serious threat). For a player, casually, an agent might say, "If he had hit a DEA agent with his car, we'd charge him under 111 – assault on a federal officer."

- **18 U.S.C. § 1153 – Major Crimes Act (Offenses in Indian Country):** As discussed, this statute gives federal courts jurisdiction over certain major crimes (like murder, manslaughter, rape, kidnapping, assault with intent to kill, arson, burglary, robbery, etc.) when they occur in Indian country and the offender is Native American (and victim is Native or non-Native) ¹³⁹ ¹⁴⁰ . Basically, for those listed crimes, if they occur on a reservation, the feds (FBI/US Attorney) prosecute instead of the state. The crimes themselves are defined by federal law or assimilated state law. Punishments are as per the federal definitions (murder = life or death, etc.). A Phoenix agent on a violent squad might investigate, say, a homicide on Navajo Nation under this authority. They'd refer to it as "a §1153 case" or simply "a reservation case."
- **18 U.S.C. § 1111 – Murder (within Special Maritime and Territorial Jurisdiction):** This defines federal murder (premeditated = first degree, all others second degree) for areas of federal jurisdiction (like federal enclaves: national parks, military bases, Indian country via §1153). Penalty for first-degree murder can be death or life; second-degree can be any term of years up to life ¹⁷ ¹⁴¹ . Most federal violent crimes that involve murder will charge §1111 alongside the specific jurisdictional hook (like §1153 or §1114). **18 U.S.C. § 1112** defines manslaughter (voluntary and involuntary) – a lesser offense. Example: a murder in Grand Canyon National Park (federal land) would be charged under §1111 (and the FBI leads the case).
- **18 U.S.C. § 1114 – Killing Federal Officers:** (Already covered above under 111/1114).
- **18 U.S.C. § 1204 – International Parental Kidnapping:** Added in 1993, this makes it a federal crime for a parent to remove or attempt to remove a child from the U.S. (or retain them outside the U.S.) with intent to obstruct lawful parental rights (custody of the other parent). It's not typically handled by violent crime squads unless it overlaps with other crimes; the FBI has separate programs for missing children. Penalty up to 3 years. It's good to know because sometimes kidnappings start as a parental abduction (which might actually be 1204 if they go international, or just a state matter otherwise).
- **18 U.S.C. § 1073 – Unlawful Flight to Avoid Prosecution (UFAP/Fugitive Felon Act):** Makes it a federal crime to travel across state lines (or to a foreign country) to avoid prosecution or punishment for a felony ²⁰ . As explained, its primary use is to allow the FBI to assist in fugitive manhunts. The offense itself carries up to 5 years, but it's usually dismissed once the fugitive is caught and returned to face state charges ¹⁸ ¹⁹ . Agents use the term "UFAP warrant" frequently when working with local cops on a fleeing suspect. E.g. "We've obtained a UFAP for the suspect who fled Arizona; our Los Angeles office will work with LAPD to locate him."
- **18 U.S.C. § 245 – Federally Protected Activities (Civil Rights/Hate Crimes):** This was the primary federal hate crime statute in 1997. It makes it a crime to use force (or threaten) to willfully injure, intimidate, or interfere with someone (or attempt to do so) because of their race, color, religion, or national origin *and* because they are engaging in certain federally protected activities (like voting,

going to school, employment, jury service, travel, or using public accommodations) ¹⁴². In practice, this required a link between the bias motive and one of those activities. Another statute, **18 U.S.C. § 247**, covers destruction of religious property (like church arson) and attacking persons exercising religious beliefs ¹⁴². Penalties vary; §245 can be up to 10 years, or life if death/kidnapping or aggravated sexual abuse occurred, or death penalty if the victim was killed. These cases were usually handled by the Civil Rights squad of an FBI division, not the general violent crime squad, but a violent crime agent might assist if, say, a hate-motivated bombing occurred (it's both a hate crime and a violent crime). In 1997, there was no general hate crime law for gender/sexual orientation/etc. (That came later with the Matthew Shepard Act in 2009). So FBI agents at the time had to use the limited existing statutes for bias crimes ¹⁴².

- **Other Notables:** There are numerous other federal statutes that could come into play. For bombings, as mentioned, **18 U.S.C. § 844(i)** is commonly used (damaging or destroying by fire/explosive any property used in interstate commerce – basically any building, vehicle, etc., not a private residence, that affects commerce) – that's federal arson and carries up to 20 years, or life if a death results. **18 U.S.C. § 242** (Deprivation of Rights Under Color of Law) is used if, for instance, a police officer willfully uses excessive force or abuse (like an officer beating a suspect to death – FBI would investigate and federal charges could be brought for violating the victim's civil rights). **RICO (18 U.S.C. § 1962)** can be applied to violent gangs if the gang's pattern of crimes (murders, kidnappings, extortions) constitutes a criminal enterprise affecting commerce – allowing enhanced penalties and tying together multiple acts. And post-1995, we have statutes addressing terrorism specifically (like **18 U.S.C. § 2332a** for weapons of mass destruction, etc.), but in 1997 those were less commonly used outside dedicated terrorism cases.

Finally, a Phoenix-specific note: Arizona has many federal enclaves (military bases, national parks) and Indian reservations. The **Assimilative Crimes Act (18 U.S.C. § 13)** allows adoption of state law for crimes on federal enclaves when there's no applicable federal statute ¹⁴³. For example, if a violent felony occurs on a military base and it's not specifically covered by a federal law, §13 says you assimilate the state law and prosecute it federally as if the state law violation. Similarly, as noted earlier, the Major Crimes Act in Indian country assimilates state law for any offense not defined by federal law for Indians (for lesser offenses not listed in §1153). As a result, an FBI agent might investigate, say, a non-federally-defined crime on an Air Force Base (like a domestic assault that's not covered by a specific federal statute) and use §13 to charge it under Arizona law in federal court.

Knowing these statutes, agents often talk in shorthand: *"We've got him on 922(g) as a felon-in-possession and a 924(c) for the gun he used in the 2113 bank job, plus a 371 conspiracy."* (Translation: a felon with a gun, a gun in a crime, a bank robbery, and a general conspiracy charge.) This jargon comes naturally after some time.

"Talking the Talk" – FBI Jargon and Communication

Equipped with the legal knowledge above, an FBI agent in 1997 will pepper their speech with law-enforcement acronyms and terms. Here are some you might hear in the Phoenix Field Office and what they mean:

- **PC** – Probable Cause. E.g. "We don't have PC to arrest him yet – need a bit more evidence."
- **RS** – Reasonable Suspicion. "We can't search the car, but we had RS to stop it."

- **Mirandize** – To advise someone of Miranda rights. “As soon as we cuffed the guy, I Mirandized him and he waived.” They may also say someone “*lawyered up*” meaning the suspect invoked the right to counsel (asked for a lawyer) ¹⁴⁴.
- **Title III** – Shorthand for a court-authorized wiretap under Title III of the Omnibus Crime Control Act. If agents say, “We might need a Title III on that kidnapper’s phone,” that means seeking a wiretap order from a judge.
- **UNSUB** – Unknown Subject (borrowed from behavioral science/serial killer cases). An agent might refer to an unidentified perpetrator as “the UNSUB.”
- **BOLO / APB** – Be On the Look-Out / All Points Bulletin. These are alerts about suspects or vehicles. “We put out a BOLO for the blue Chevy van.” Often shared with local police.
- **SSA** – Supervisory Special Agent (an FBI supervisor). “I’ve got to run this by my SSA,” meaning the squad supervisor.
- **SAC** – Special Agent in Charge, the head of the Phoenix Field Office. “The SAC wants an update on the case.”
- **RA** – Resident Agency, a smaller FBI satellite office. Phoenix Division has RAs in places like Tucson, Flagstaff, etc. If working a fugitive case going into Nevada, an agent might say: “We’ll coordinate with Las Vegas RA to pick him up” ¹⁴⁵ ¹⁴⁶ (Las Vegas is actually its own division, but example).
- **OP** – Operational Plan. Agents often prepare a written “OP plan” for arrests, searches, surveillances. “We’ll finalize the OP plan for the takedown tomorrow.”
- **CI** – Confidential Informant. Also called a “source.” Agents might say, “My CI gave me a heads-up about a planned robbery.”
- **UC** – Undercover Agent or operation. “We have a UC meeting the subject to buy guns.”
- **SWAT** – Special Weapons and Tactics team. FBI has SWAT for high-risk arrests/searches. “We’ll use SWAT to hit the house at dawn.”
- **372 / 302** – These are FBI forms. FD-302, as said, is the interview summary form. FD-302 is such a staple that agents use it as noun and verb: “I’ll 302 the witness interview this afternoon.” Or “Did you upload the 302s to the case file?” An **FD-302** report might be referred to just as “a 302.” FD-372 is a Receipt for Property (when giving or taking evidence).
- **Lead** – An investigative task, often sent from one office to another. “We sent a lead to the Dallas office to interview the suspect’s former employer.”
- **MCU** – Major Case, or Major Case Unit (depending on context). In Phoenix, a “major case” could be a designation meaning it’s one of FBI’s nationally monitored cases (with a number like 97-324 indicating year and number).
- **TF** – Task Force. “He’s on the Violent Crime Task Force with Phoenix PD and FBI.”
- **USAO** – U.S. Attorney’s Office. Agents say “the USAO” to mean federal prosecutors. Or simply “the AUSA” (Assistant U.S. Attorney). “We need USAO approval on that immunity deal.”
- **GC** – General Counsel (FBI lawyers). “Run it by GC to make sure the wire room is okay legally.”
- **Residence** – Home. Agents often say “residence” in reports. E.g. “Subject returned to his residence.” Among each other, might just say house.
- **Subjects vs. Victims vs. Witnesses**: FBI typically calls suspects “subjects.” In conversation, “Our subject is John Doe.” Victims are called “victims” or sometimes “complainants” (esp. in case initiation). Witnesses just “witnesses” (or sources if confidential).
- **TIII Affidavit** – Title III affidavit for a wiretap. A big undertaking, often dozens of pages. Agents mention it to emphasize effort: “I spent all week writing that TIII aff.”
- **King for a Day letter** – Slang for a proffer agreement allowing a defendant to speak without it being used against them (except for perjury). Officially called a proffer letter.

- **Behavioral Analysis (BSU)** – might not come up often in typical cases, but could if a profile is requested on an unknown offender (e.g. serial killer). They might mention “BAU” (Behavioral Analysis Unit).
- **“Drop a dime”** – Old phrase meaning to report something (from payphone days). E.g. “Our informant dropped a dime on his partner.”
- **Dual Arrest** – executing both federal and state arrest warrants at once (happens if both are filed).
- **“Give him the federal ride”** – If locals arrest someone but the Feds want to charge, they might say jokingly, “We’ll give him the federal ride” meaning remove him to federal custody.
- **JPATS / Con Air** – How feds transport prisoners (Justice Prisoner & Alien Transportation System). An agent might joke about sending a prisoner via “Con Air” (the nickname for JPATS flights).
- **Volley** – Shots fired. “He volleyen with an AK at our surveillance team.” Not an official term but cop slang.
- **OIS** – Officer Involved Shooting. If an agent fires his weapon, an OIS investigation occurs.

Agents also have their internal slang and straightforward speak. They might say to a local cop: *“We have a fed UFAP warrant for this guy – he’s wanted for homicide in Phoenix and fled to Nevada. Let’s coordinate with the Vegas office to grab him.”* ¹⁴⁵ ¹⁴⁶ Here, “fed” indicates federal, UFAP we know, “grab him” just means arrest him. To a prosecutor, an agent might outline charges: *“We can charge carjacking under 18-2119 and tack on a 924(c) for the shotgun he used – that’ll give us leverage in plea talks.”* ¹⁴⁷ ¹⁴⁸ They expect the AUSA knows those numbers, and they do.

When executing a search warrant, a team leader might brief: *“Alright, we’re looking for the kidnap victim’s clothing and any weapons. No fishing expeditions. Stick to the warrant scope – listed items are in Attachment B. If you see obvious contraband in plain view, great, seize it, but don’t go opening random drawers that couldn’t hold what we’re after, unless it’s big enough to hide the evidence.”* ¹⁴⁹ ¹⁵⁰ This reminds agents to follow the rules of the search.

Lastly, FBI agents in 1997 balanced being **law enforcers** and **guardians of the Constitution**. One might say philosophically: *“We carry a badge and a gun, and a Miranda card and the Constitution in our pocket.”* They pride themselves on chasing down the worst criminals while also respecting rights. An agent could be chasing an armed felon one day and testifying in a suit and tie the next – that dual role is captured in a common idea within the Bureau: enforcing the law **and** upholding justice.

Conclusion: In 1997, an FBI violent crime agent stands at the intersection of street-level grit and legal nuance. They might **kick down a door at 6 AM** to arrest a fugitive, but later that day find themselves meticulously documenting evidence for court. They navigate **Constitutional law daily** – deciding when they can search, when to Mirandize, how to avoid entrapment – all under policies that reflect decades of legal precedent. This handbook has given you a detailed glimpse of that world: the legal standards (from probable cause to Miranda to deadly force rules), the FBI’s internal practices (from paperwork to informant handling), and examples of how scenarios play out in real life. With this knowledge, you should be well-equipped to portray an FBI agent in 1997 authentically – speaking the lingo, making the judgment calls, and carrying out the sacred mission of law enforcement: to **“protect and defend”** while honoring the rights of all. Now, gear up – it’s time to play your part on the table-top stage as a 90s FBI agent, where the next case is one cue away. Stay safe, and **keep the faith** (an FBI saying), because in this line of work, you’ll need both.

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